



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-21-00127 – Bison Business Park, 2nd Filing Final Plat
Date: May 24, 2021

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/24/2021
- Public Services Committee 6/8/2021
- Final consideration 6/14/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their May 3, 2021 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed; except that the plat map is the revised plat map submitted 5/18/2021.

The Planning Commission Staff report and Planning Commission recommendation contained conditions. These conditions have been addressed by the submission of a revised map.

Attachments:

1. Resolution
2. Planning Commission Staff Report

APPROVED

By Alessandra at 8:55 am, May 05, 2021

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR BISON BUSINESS PARK, 2ND FILING, A PLAT OF A PORTION OF SECTIONS 32 AND 33, TOWNSHIP 13 NORTH, RANGE 66 WEST, OF THE 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF SOUTH GREELEY HIGHWAY [US 85], NORTH OF CHALK BLUFF ROAD).”

WHEREAS, Arp and Hammond Hardware Company, Lummis Livestock Company, LLC, and the Wyoming Department of Transportation, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Arp and Hammond Hardware Company, Lummis Livestock Company, LLC, and the Wyoming Department of Transportation, the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Bison Business Park, 2nd Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2021.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



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CITY OF CHEYENNE PLANNING COMMISSION

MAY 3, 2021

STAFF REPORT

FILE: UDC-21-00127: Bison Business Park, 2nd Filing Final Plat

REQUEST: A final plat creating 6 lots for future industrial development

LOCATION: East of South Greeley Highway (US 85), north of Chalk Bluffs Road

OWNER: Arp and Hammond Hardware Company, Lummis Livestock Company, LLC, and Wyoming Department of Transportation

AGENT: Brad Emmons, AVI, PC

ZONING: County A-2 Agricultural

FUTURE LAND USE: Industrial

PROPOSED LOTS: 6

TOTAL AREA: 362.4 acres

CASE PLANNER: Seth Lloyd, Planner II – Development



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the Bison Business Park, 2nd Filing Final Plat, subject to Staff's recommended conditions, noting that as conditioned, the project meets the review criteria for approval; and that a final plat addressing these conditions of approval be prepared and presented to the Governing Body.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.3 Final Plat
- UDC Article 4 Subdivisions
- Plan Cheyenne

BACKGROUND:

This is a request to final plat 6 lots, with associated public rights-of-way. The lots were preliminary platted as part of the Bison Business Park preliminary plat which was approved by the Governing Body on February 8, 2021. Pursuant to UDC 2.1.2.c.6.a preliminary plats remain active 18 months after their approval or since the last final plat was approved within the preliminary plat.

Concurrent applications for an annexation and a zone change (to LI, HI, AG, and P) have also been submitted.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of final plat, the Commission must make the following findings required in UDC 2.1.3.d a detailed analysis is below. The purpose of a final plat review is to ensure compliance with the approved preliminary plat and its conditions of approval.

- 1) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The layout of the Final Plat is substantively compliant with the approved Preliminary Plat in layout. Lots and streets are re-aligned, but are substantially shown in the same locations and are substantially the same in area (when considering the size and scope of the development).

Loving Trail no longer continues south of Wisent, however the Preliminary Plat had Loving Trail terminating in a cul-de-sac, so no network connections are lost by the removal of this section of right-of-way. The two lots on either side of the Loving Trail cul-de-sac have been consolidated into one lot. Lot 2, Block 4 had access to Loving Trail, but no longer has such access. This lot would be required to access South Greeley Highway or Chalk Bluff Road. Due to the access limitations associated with major transportation corridors, it is likely that access would be limited to Chalk Bluff Road. Staff recommends a condition that a note be added to the plat preventing access to South Greeley Highway for this lot.

The WYDOT parcel was not part of the Preliminary Plat; however, this parcel is bounded on three sides by the Preliminary Plat and on the 4th side by the South Greeley Highway right-of-way. The layout of this parcel was therefore effectively defined by the Preliminary Plat and

including it within this plat allows for cleaner and clearer delineation of the parcel. Including the parcel in the plat is more of a 'housekeeping' action than a true deviation from the original plat.

The application **complies** with this review criterion, as conditioned.

2) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

The preliminary plat was approved on January 4th 2021 by the Planning Commission, and the first Final Plat associated with the Preliminary Plat was approved February 8, 2021 – both subject to the following condition:

1. *Prior to recording of the final plat, Land Acquisition and Infrastructure Fees totaling \$180,740 shall be paid to the City.*

The Final Plat which this condition referenced has been filed and the **condition has been fulfilled**. The condition is not applicable to this Final Plat application.

The application **complies** with this review criterion.

3) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

Transportation Network

Concepts regarding block layout, street design, and access were evaluated with the Preliminary Plat and no changes to the larger network are proposed with the Final Plat submittal. The removal of the Loving Trail cul-de-sac does not remove or modify any network connections.

Community Facilities and Fees

Fee analysis regarding fees dues, exemptions, and credits were evaluated with the Preliminary Plat; however due to the phased nature of this project, fees become due at different times. Lands reserved for right-of-way are exempt from paying fees. Lands used by governmental agencies (as Lot 1, Block 1) are also exempt. Lands zoned AG are exempt until rezoned out of the AG zone. Plat fees are therefore only applicable to the parcels proposed to be zoned LI and HI. For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The required fees for the 122.1 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$42,735 (\$350 per acre)
Infrastructure Fee	\$42,735 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$85,470.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure. The Commercial Enhancement Fee is \$1,100 per acre.

Total Fees due at signing of the plat: \$85,470.00

Open Space Systems

Open Space is not required for areas designated Industrial by the Future Land Use Map and the industrial and agricultural zones have no open space requirements.

Required Improvements and Engineering Specifications

This proposed subdivision appears to be able to provide all required utilities to the properties within this development. The Board of Public Utilities is requesting easements to allow the effective extension of water and sewer.

The application **complies** with this review criterion, as conditioned.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Board of Public Utilities (BOPU) easements.
2. Drainage design needed with site development and street construction.
3. Potential access for Lot 2, Block 4.
4. The WYDOT ownership of a portion of the plat.
5. Timing the construction of the public streets.
6. Potential pedestrian or multi-use path through the development.
7. Consistency with the approved Preliminary Plat.

The foregoing comments resulted in the following recommended conditions for approval:

1. Add Board of Public Utilities (BOPU) easements to Lot 2, Block 4 to the Final Plat.
2. Add a note to the plat limiting access to Lot 2, Block 4 to Chalk Bluff Road.
3. Add a signature block for the Wyoming Department of Transportation to sign as an owner.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.1.3.(d) for Final Plat approval. The Final Plat is consistent with the approved Preliminary Plat. Staff recommends approval of the Final Plat with the following conditions:

1. Add Board of Public Utilities (BOPU) easements to Lot 2, Block 4 to the Final Plat.
2. Add a note to the plat limiting access to Lot 2, Block 4 to Chalk Bluff Road.
3. Add a signature block for the Wyoming Department of Transportation to sign as an owner.
4. Correct the vicinity map to match the Final Plat boundary.

ALTERNATIVES:

1. Recommend approval of the project as submitted by the applicant.
2. Recommend that the application be approved with specific conditions or modifications, and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body. (**Staff Recommendation**)
3. Recommend that the application be denied based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Options

The Commission may only condition the final plat in select circumstances. Conditions or modifications shall be to better meet standards and review criteria; or to address situations created by or aggravated by the proposed application, and which conditions are roughly proportional to the impacts of the proposed development. New conditions shall not be added.

STAFF RECOMMENDATION:

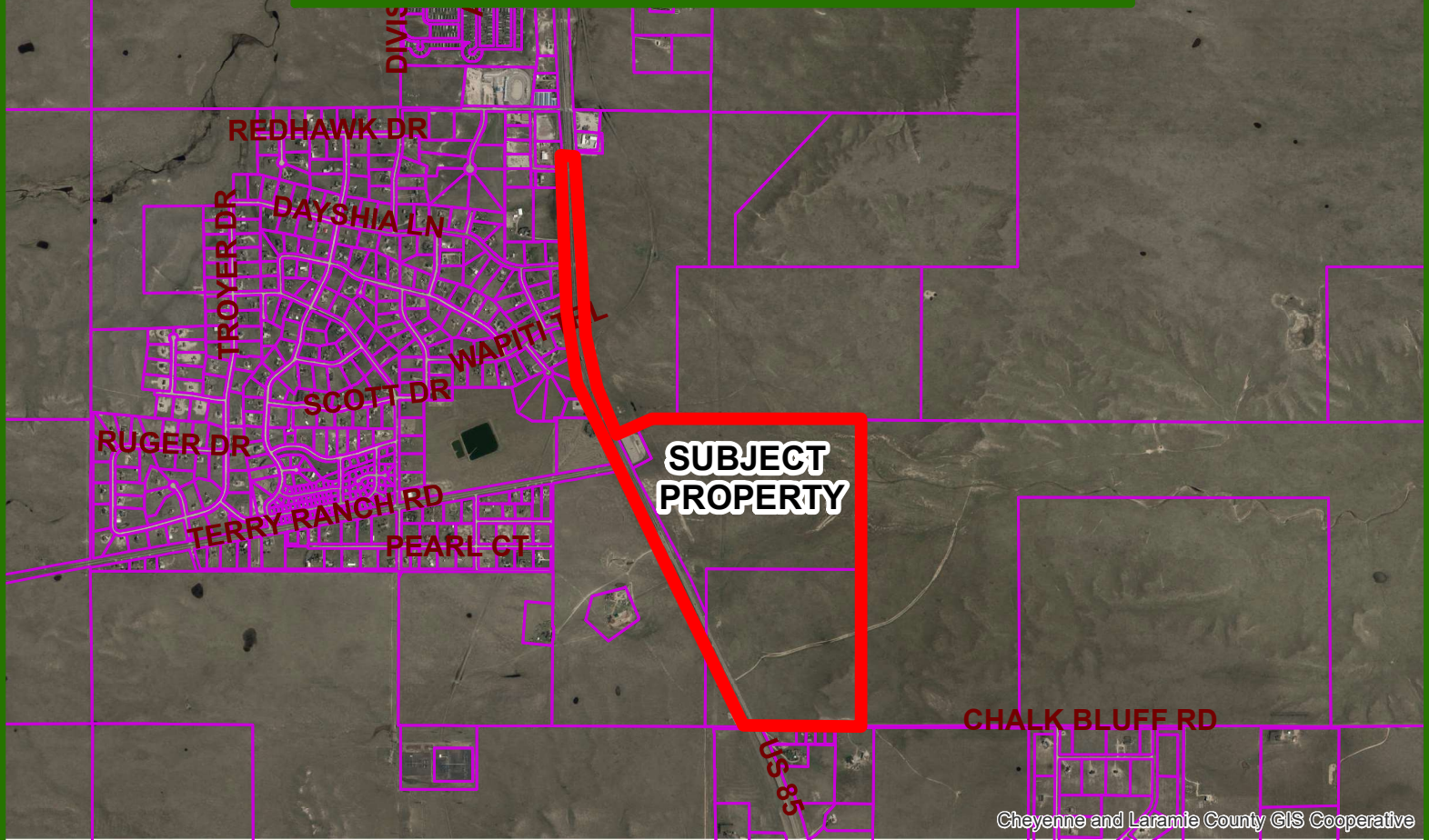
Staff recommends that the Planning Commission recommend the Governing Body **approve** the Bison Business Park, 2nd Filing Final Plat with the following conditions:

1. Add Board of Public Utilities (BOPU) easements to Lot 2, Block 4 to the Final Plat.
2. Add a note to the plat limiting access to Lot 2, Block 4 to Chalk Bluff Road.
3. Add a signature block for the Wyoming Department of Transportation to sign as an owner.
4. Correct the vicinity map to match the Final Plat boundary.

ATTACHMENTS:

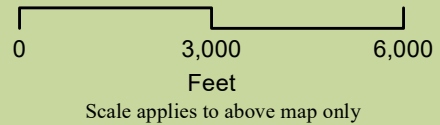
1. Aerial, Zoning, and Future Land Use Map
2. Application
3. Approved preliminary plat
4. Final Plat

Bison Business Park, 2nd Filing Zone Change and Plat

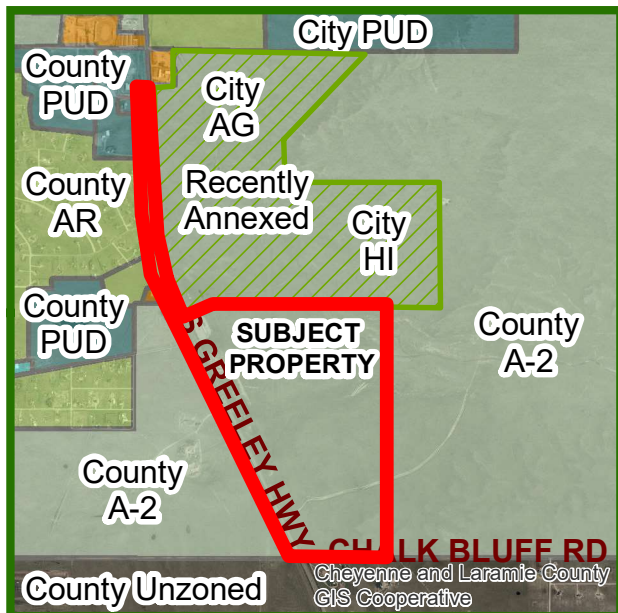


Application Number
Zone Change and Plat
UDC-21-00126
UDC-21-00127

Agent: AVI, PC
Brad Emmons
Owners: Lummis Livestock Co
Arp and Hammond Hardware Co

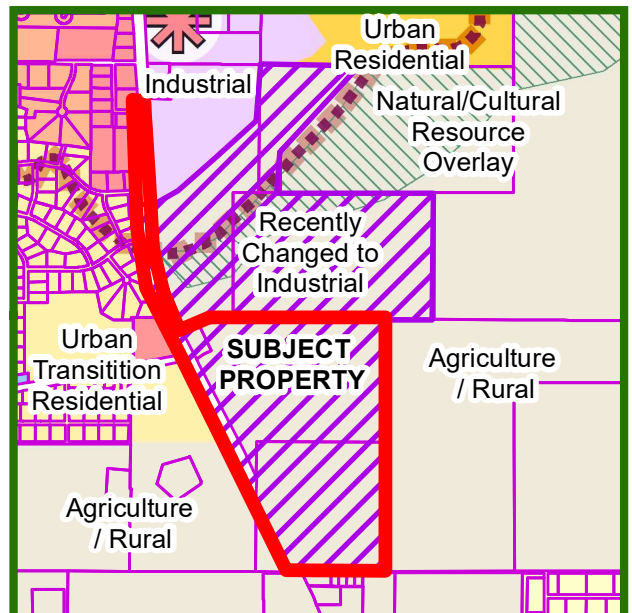


Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Plat - Final

Submission date: **31 March 2021, 5:58PM**

Receipt number: **4**

Related form version: **12**

General Information

Applicant Name: **Betsey Hale, Cheyenne LEADS**

Applicant Address: **121 W 15th Street, Suite 304**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-638-6000**

Applicant Email: **betseyh@cheyenne leads.org**

Representative Name: **Brad Emmons - AVI pc**

Representative Address: **1103 Old Town Lane, Suite 101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-637-6017**

Representative Email: **emmons@avipc.com**

Owner Name: **Doran E. Lummis - Arp and Hammond Hardware Co,
Lummis Livestock Co**

Owner Address: **1825 Campstool Road**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	307-630-3186
Owner Email:	d3lummis@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization.pdf letter-of-authorization-fillable-form.pdf
Project Location (Street Address or General Location):	a portion of Sections 32 and 33, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming
Assessor's Parcel ID number(s)	R0062974, R0065325, R0062986
Total Project Area	Enter total acreage/square feet
Existing Zoning	Other: County A-2

Application-Specific Information

Written Statement	Final plat to create parcels for the sweetgrass substation along with additional lots for the Bison Business Park, Second Filing
Active Preliminary Plat	Bison Business Park
A pre-application meeting is not required but recommended. Please indicate the date the pre-application meeting was held.	03/24/2021
Upload any pre-application meeting notes or summaries relevant to this proposal.	
Are any easements proposed to be added, modified, or removed? Yes	

If easement locations differ from previous approvals or have not yet been provided, attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

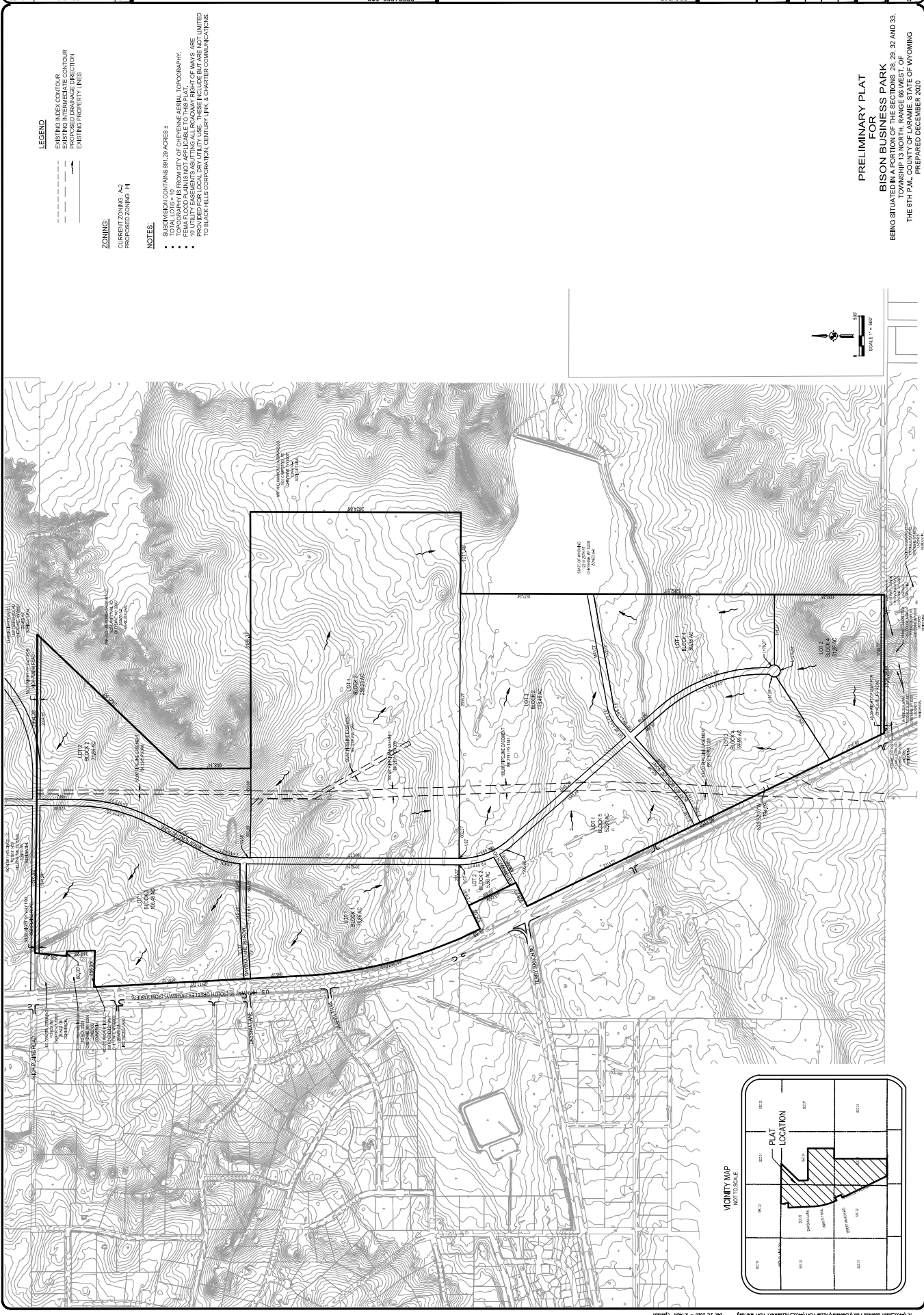
Open Space Approach	N/A
Drainage Worksheet / Study	BISON BUSINESS PARK CONCEPTUAL DRAINAGE PLAN 11-19-20.pdf
Transportation Network Plan	Bison Business Park Traffic Study 2020-11-18.pdf
Transportation Worksheet / Study	Bison Business Park Traffic Study 2020-11-18.pdf
Final Plat Drawing	4435 BISON 2ND FINAL PLAT SUBMIT 3-31-21.pdf
Is this being processed as an Expedited Plat?	No

Signature / Certification

Applicant Signature	Name of signatory: Brad Emmons
	
	Uploaded signature image: brad emmons.jpg

Please enter an email address for an email receipt.

emmons@avipc.com



LEGEND

- EXISTING INDEX CONTOUR
- EXISTING INTERMEDIATE CONTOUR
- EXISTING DRAINAGE DIRECTION
- EXISTING PROPERTY LINES

ZONING

- CURRENT ZONING: A2
- PROPOSED ZONING: H

NOTES

- SUBDIVISION CONTAINS 81.28 ACRES ±
- TOTAL LOTS = 10 FROM CITY OF CHEYENNE AERIAL TOPOGRAPHY.
- TOTAL BLOCKS = 10 FROM CITY OF CHEYENNE AERIAL TOPOGRAPHY.
- FEAR FLOOD PLANS NOT APPLICABLE TO THIS PLAT.
- UTILITY EASEMENTS SHALL BE SHOWN AND Labeled AS SUCH.
- PROVIDED FOR LOCALITY, UTILITY USE, THESE INCLUDE BUT ARE NOT LIMITED TO BLACK HILLS CORPORATION, CENTURY LINK & CHARTER COMMUNICATIONS.

PRELIMINARY PLAT
FOR
BISON BUSINESS PARK

BEING SITUATED IN A PORTION OF THE SECTIONS 28, 29, 32 AND 33,
THE 8TH P.M. COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED DECEMBER 2020

